

Criminal Law I | Transitioning from IPC to BNS

CHAPTER XXII OF CRIMINAL INTIMIDATION, INSULT AND ANNOYANCE

IPC 503-510 | BNS 351-355 and 79

Study IPC Sections 503-510: coercive threats, provocative insults, harmful public statements, anonymous intimidation, coercion through Divine displeasure, insults to a woman's modesty and drunken public misconduct. Historical Chhattisgarh Sections 509A and 509B are presented separately. This chapter connects each central IPC provision to the BNS and includes revision problems and an indexed study PDF.

Study edition: 6 October 2026. Course position 25. Eight central IPC provisions, two historical state insertions and eight self-check questions. Notes summarise the cited central enactments for legal education.

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Objectives and transition

- Identify the threat, protected interest and coercive intention in intimidation.
- Distinguish an insult from provocation likely to cause a breach of peace.
- Separate all three public-mischief subsections and apply the exception.
- Compare ordinary, aggravated and anonymous intimidation punishments.
- Explain coercion through Divine displeasure using both illustrations.
- Apply the modesty/privacy and intoxication/public-annoyance provisions.
- Distinguish historical state amendments from central BNS mappings.

The IPC Chapter XXII heading is retained for course continuity. The principal BNS counterparts are in Chapter XIX; IPC 509 is reorganised into BNS Chapter V. For application, identify the date of the alleged conduct and consider BNS commencement on 1 July 2024, Section 358 repeal and savings, and Article 20(1). Filing a complaint after commencement does not by itself convert a historical IPC offence into a BNS offence. These notes paraphrase the legislation for study; the linked enactments supply the full text. IPC 511 belongs to Chapter XXIII and is outside this requested chapter.

IPC-to-BNS comparison

503 → 351(1); 504 → 352; 505 → 353; 506 → 351(2)-(3); 507 → 351(4); 508 → 354; 509 → 79; 510 → 355. Keep definitions, punishment tiers and statutory exceptions separate.

IPC 503. Criminal intimidation

BNS reference: 351(1)

The offence requires a threat of injury to the target's person, reputation or property, or to the person or reputation of someone in whom the target is interested. The purpose must be to cause alarm, compel an act the target is not legally bound to do, or prevent an act the target is legally entitled to do as the means of avoiding the threat. The explanation covers threats against the reputation of an interested deceased person. A threatens to burn B's house unless B stops pursuing a civil suit: the threat uses unlawful injury to interfere with a legal entitlement. Distinguish this from an ordinary notice of lawful legal proceedings. BNS expressly covers threats by any means.

IPC 504. Intentional insult with intent to provoke breach of the peace

BNS reference: 352

Identify an intentional insult, resulting provocation, and intention or knowledge that the provocation is likely to cause a breach of public peace or another offence. Mere unpleasant language does not dispense with those elements. The maximum is two years' imprisonment of either description, fine, or both. Actual violence is not the sole statutory test; explain the intended or known likely consequence in context.

IPC 505. Statements conducing to public mischief

BNS reference: 353(1)-(3) and exception

Subsection (1)(a) concerns inducing armed-forces personnel to mutiny or disregard duty; (b) concerns public fear or alarm linked to inducement to an offence against the State or public tranquillity; (c) concerns inciting a class or community to offences against another. Punishment: imprisonment up to three years, fine, or both. Subsection (2) covers statements or reports containing rumour or alarming news that intentionally or likely promote group enmity, hatred or ill-will on the listed grounds. It has the same three-year maximum, fine, or both. Subsection (3) aggravates the subsection (2) offence in a place of worship or assembly performing religious worship or ceremonies: up to five years and liability to fine. The exception requires reasonable grounds to believe the material true, good faith, and absence of the specified intent. BNS expressly includes false information and electronic means. Do not treat every inaccurate post as this offence without the relevant statutory consequence.

IPC 506. Punishment for criminal intimidation

BNS reference: 351(2)-(3)

Ordinary intimidation: imprisonment of either description up to two years, fine, or both.
Aggravated threats: death, grievous hurt, destruction of property by fire, causing an offence punishable with death, life imprisonment or imprisonment extending to seven years, or imputing unchastity to a woman. The aggravated maximum is seven years' imprisonment of either description, fine, or both. First establish the definition under IPC 503; then select the punishment by the nature of the threat. Actual execution of the threatened injury is not required by that definition.

IPC 507. Criminal intimidation by an anonymous communication

BNS reference: 351(4)

The underlying intimidation must first be established. Anonymous communication or precautions concealing the sender's name or abode attracts imprisonment of either description up to two additional years. Concealment is an additional feature, not a substitute for proving the threat and relevant intention. Read BNS 351 as a whole when describing the additional punishment; its subsection (4) literally refers to subsection (1).

IPC 508. Act caused by inducing belief in Divine displeasure

BNS reference: 354

The offender voluntarily causes or attempts to cause an act not legally required, or omission of an act legally permitted, by inducing or attempting to induce belief that the target or an interested person will become an object of Divine displeasure through the offender's act. Maximum: one year's imprisonment of either description, fine, or both. Illustration (a): A sits dhurna at Z's door intending Z to believe this makes Z an object of Divine displeasure. Illustration (b): A threatens to kill A's own child unless Z acts, in circumstances making Z believe the killing would bring Divine displeasure on Z. The coercive use of the belief matters; religious belief or peaceful observance alone is not the stated offence.

IPC 509. Word, gesture or act intended to insult the modesty of a woman

BNS reference: 79

With intention to insult a woman's modesty, the offender utters words, makes a sound or gesture, exhibits an object intended to be heard or seen by her, or intrudes upon her privacy. Punishment: simple imprisonment up to three years and fine. Explain the intention, targeted communication or privacy intrusion and context. Physical touching is not a required element of this provision. The BNS counterpart sits in Chapter V, concerning offences against women and children, rather than Chapter XIX.

IPC 510. Misconduct in public by a drunken person

BNS reference: 355

Intoxication, presence in a public place or a place where entry is a trespass, and conduct causing annoyance to a person must coexist. Intoxication alone is insufficient. Historical IPC punishment: simple imprisonment up to twenty-four hours, fine up to ten rupees, or both. BNS retains the twenty-four-hour maximum, raises the fine ceiling to one thousand rupees and permits community service. Keep the old and new fine amounts distinct.

Ingredients, distinctions and illustrations

Threats versus insults: intimidation uses threatened injury with the prescribed intention; intentional insult concerns provocation with the prescribed likely consequence. A rude exchange must be analysed on facts rather than assigned both labels automatically.

Threats versus defamation: threatening reputational injury to compel conduct is different from making or publishing a defamatory imputation. The same facts may require separate analyses, but the offences have different elements.

Individual alarm versus public mischief: a threat to an individual and a report likely to induce public disorder are distinct statutory inquiries. Identify the audience, content, purpose and relevant consequence.

Digital examples: a concealed account demanding withdrawal of a suit under a threat of burning the claimant's house calls for intimidation, aggravation and anonymity analysis. A forwarded rumour calling for violence between communities calls for the subsection-specific public-mischief analysis and exception. Merely forwarding material neither automatically proves nor excuses every element.

Examination method: state the conduct and intention separately; connect every element to a fact; consider the relevant explanation or exception; then identify the punishment. An actual completed injury, riot or coerced act must not be inserted as a universal requirement when the relevant provision includes intention, likelihood or attempt.

Chhattisgarh state amendments

The supplied state-amendment extract identifies Chhattisgarh Act 25 of 2015, Section 6. These are historical state-specific IPC insertions, not sections of the central IPC applicable throughout India.

509A. Sexual harassment by relative

A blood, adoption or marriage relative other than the husband takes advantage of proximity and induces, seduces or threatens the woman with intent to insult her modesty through word, gesture or act. Rigorous imprisonment: minimum one year, maximum five years; liability to fine. Do not omit the relationship, exclusion of husband or use of proximity.

509B. Sexual harassment by electronic mode

Transmission-related conduct through telecommunications or electronic modes, including the internet, covers the specified obscene, lewd, lascivious, filthy or indecent communications, with intent or knowledge concerning harassment, annoyance or mental agony to a woman. Rigorous imprisonment: minimum six months, maximum two years; liability to fine.

Transition caution

There is no numbered one-to-one central BNS counterpart for these state insertions. Do not label them BNS 79A or 79B or assume automatic nationwide operation. BNS 79 and other provisions must be assessed on their own elements. Any claim about current state-law applicability requires the applicable state enactments, commencement and savings to be checked separately; this chapter does not assert that the historical insertions automatically amend the BNS.

Revision and exam method

- IPC 503 defines intimidation; 506 supplies its ordinary and aggravated punishment.
- A threat to an interested deceased person's reputation is expressly covered by the explanation.
- IPC 504 requires intentional insult plus the prescribed provocation and mental element.
- IPC 505(3) aggravates the subsection (2) offence in the specified religious setting.
- The public-mischief exception needs reasonable grounds, good faith and absence of the specified intent.
- IPC 507 adds up to two years for anonymity or deliberate concealment.
- IPC 508 covers causing or attempting coercion through belief in Divine displeasure.
- IPC 509 carries simple imprisonment up to three years and fine; it is distinct from physical assault.
- IPC 510: historical fine up to ₹10; BNS 355: up to ₹1,000 and community service option.
- Chhattisgarh 509A/509B are historical state amendments; do not invent a central BNS equivalent.

For a problem answer: determine the applicable code and territorial setting; identify the words or conduct, recipient or audience and protected interest; apply each mental element; distinguish definition, aggravation and anonymity; test the public-mischief exception where relevant; state the precise punishment and type of imprisonment. For state insertions identify both the jurisdiction and historical legislative source.

Practice questions and model answers

Self-check study exercises; not a timed or graded assessment.

1. A threatens to burn B's house unless B abandons a civil suit. Analyse.

Model answer: The threat concerns property injury and seeks omission of a lawful act. Apply IPC 503/506 or BNS 351 according to the date. The fire threat engages the aggravated punishment tier. The statutory illustration directly addresses this pattern.

2. Does every rude remark establish IPC 504?

Model answer: No. Identify intentional insult, resulting provocation and intention or knowledge concerning likely breach of public peace or another offence. Context and the stated consequence matter.

3. Is public-mischief punishment always five years?

Model answer: No. IPC 505(1) and (2) have a three-year maximum, fine, or both. The five-year maximum and liability to fine in (3) concern the subsection (2) offence in the specified religious location or assembly.

4. A circulator says a rumour was sincerely believed. Is that enough for the exception?

Model answer: No. Address reasonable grounds for truth, good faith and absence of the specified intent together; sincerity does not replace the statutory conditions.

5. What must be proved before the anonymous-threat addition?

Model answer: The underlying intimidation, followed by anonymous communication or precautions concealing name or abode. The additional maximum is two years; an anonymous message alone is not necessarily intimidation.

6. How do the two Divine-displeasure illustrations operate?

Model answer: Both use the offender's conduct or threatened conduct to induce a coercive belief in the target: sitting dhurna at the door in the first, and threatening the offender's own child in the second. Apply the desired act or omission and the prescribed belief.

7. Is drunken presence in a public place alone enough under IPC 510?

Model answer: No. Conduct causing annoyance to a person is also required. Compare the historical ₹10 ceiling with BNS 355's ₹1,000 ceiling and community-service option.

8. Can Chhattisgarh 509A/509B be renamed BNS 79A/79B?

Model answer: No. They are historical state IPC insertions. BNS 79 is the central counterpart to IPC 509; analyse other conduct under applicable provisions and verify any current state amendment separately.

Official sources

BNS 2023 — Sections 79, 351-355 and 358 (India Code)

[Open official source](#)

Historical IPC — Chapter XXII, Sections 503-510 and state-amendment annotation

[Open official source](#)

BNS commencement notification S.O. 850(E), 23 February 2024

[Open official source](#)

Read the full applicable statutory text for a live matter. The historical Chhattisgarh insertions are not asserted to be current BNS amendments. The examples are teaching illustrations, not reported judgments.